

S03-L2 — Provenance and Authenticity: Why Ownership History Makes the Price

Summary

Every object sold as art carries two distinct histories: what it is (authorship, materials, date) and where it has traveled since it left the artist's studio until today. This second history, provenance, is what backs the first one both commercially and legally. This note reviews what provenance is, the role a catalogue raisonné plays as the reference authority on an artist's recognized body of work, and develops in detail a public 2024 case, the authenticity dispute over a painting attributed to Tarsila do Amaral offered at the SP-Arte fair in São Paulo, which shows how a provenance question can flare up even around a name with an established market record. It closes with a practical guide to what a sales professional should check before accepting the provenance of a work a client wants to consign or buy.

1. What Provenance Is

Provenance is the documented record of every change of ownership, every exhibition, and every public appearance of a work since its creation. It functions as the backbone of two things at once: confidence that the work is what it claims to be, and the legal title of whoever holds it today. A complete provenance chain reduces the risk that a piece is a forgery, an unauthorized copy, or an object carrying a pending legal claim from a previous owner, including cases of works stolen or confiscated historically that resurface in the market decades later. An incomplete chain does not prove a work is fake, but every missing link is a point where the auction house, the buyer, or the advisor cannot verify the history on their own, and it therefore demands closer investigation before the piece is accepted.

2. The Catalogue Raisonné and Scholarly Authority

For the artists who carry the most market weight, there is, beyond the provenance of each individual piece, a general reference document: the catalogue raisonné. It is the list a team of specialists compiles, often tied to the artist's foundation or estate, of every work they recognize as genuine, together with its provenance record, exhibition history, and associated literature. It is not

a static document: it is updated as new works surface or doubtful attributions are dropped, and its review process can include technical analysis of the physical object alongside stylistic judgment. Appearing in the catalogue raisonné does not fix a work's market price, but it is the reference any serious auction house checks before accepting a consignment of meaningful value, and its absence, or the inability to locate a piece there, functions as a red flag that calls for further investigation before any commercial transaction moves forward.

3. Case Study: The Tarsila do Amaral Dispute at SP-Arte

Tarsila do Amaral today holds the highest auction record for a painting by a Brazilian artist, [eleven million two hundred thousand dollars \(57.5 million reais\) paid in December 2020 for her work *A Caipirinha*](#)¹. That price benchmark means any newly attributed painting by the artist immediately draws attention from both buyers and commercial competitors.

In April 2024, at the SP-Arte fair in São Paulo, a gallery privately offered, outside the fair's official booth, a previously uncatalogued painting attributed to Tarsila do Amaral, with an asking price of approximately USD 3.2 million. [The founder of a rival Brazilian auction house publicly challenged its authenticity](#)¹, stating he was certain it was a forgery without having examined the piece up close. The gallery representing the sale responded that judging a work's authenticity without seeing it in person was methodologically impossible, and noted that the painting was being shown in private meetings with prospective buyers, not as part of the fair's public circuit.

This episode illustrates a pattern that recurs in markets for historical artists with scarce supply and rising demand: the higher a name's benchmark price climbs, the greater the financial incentive to try to pass off a doubtful piece as genuine, and the greater the temptation to publicly question a legitimate work's authenticity out of one's own commercial interest. Neither is resolved by the opinion of a single interested party, whether the one offering the work or the one challenging it: it requires an independent technical verification process, with physical access to the piece, which normally takes weeks or months. The dispute over this particular painting remained active as of this note's closing, with a later technical ruling that falls outside the sources available for this edition.

4. What a Professional Checks Before Accepting a Provenance

Before advising a client on buying, selling, or consigning a work, it is worth systematically reviewing several elements. First, whether the piece appears in the artist's catalogue raisonné, where one exists, or whether the entity that manages the artist's estate has issued a ruling on it. Second, the documentary

chain of previous owners, with invoices, consignment agreements, or correspondence backing every change of hands, without unexplained gaps of years. Third, the record of public exhibitions and appearances in specialized publications, which reinforces the work's traceability over time. Fourth, in the case of works on paper or editions, whether the specific copy actually matches the official record of that edition, including whether it was sold as an artist's proof or as part of the standard numbering. Whenever a meaningful doubt arises, especially in high-value transactions, the right move is to recommend an independent technical opinion before proceeding, rather than relying solely on the seller's word.

For the Conversation with Clients

Facing a work without a complete provenance history, a professional can confidently state what the available documentation actually supports, and must be just as explicit about what remains unconfirmed. It is worth explaining to a client that requesting provenance documentation in writing before closing a deal is standard practice in the trade, regardless of how much personal trust exists in the seller. And facing a meaningful-value work with an incomplete history, the professional recommendation is to suggest an independent verification before moving the price up or committing to a purchase or consignment decision.

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1. The Art Newspaper, [«Authenticity of Tarsila do Amaral painting shown at SP-Arte called into question»](#), April 8, 2024. ↵↵